

24PSCV04372 24PSCV04372

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C09%2F10%2F2026

Source SHA-256: 91dc767c76f215c75ea380d61d0782541a91c328a37758c26a26416d101da0d7

Case Number: 24PSCV04372 Hearing Date: September 10, 2026 Dept: H

John Doe Ol v.

Mandy Amanda Morales, et al.,

Case No. 24PSCV04372

ORDER ON MOTION

TO COMPEL FURTHER RESPONSES

Plaintiff John Doe Ol's Motion

to Compel Further Responses to Plaintiff's Form Interrogatories, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One is GRANTED in part.

Background

Plaintiff

John Doe Ol ("Plaintiff") alleges that, beginning in approximately 2010 and ending in approximately 2013, he was sexually assaulted by teacher's aide and van driver Mandy Amanda Morales ("Morales") while enrolled as a student at Canyon View High School in San Dimas.

On

March 4, 2025, Plaintiff dismissed Bonita Unified School District, without prejudice.

On July

2, 2026, Plaintiff filed a Third Amended Complaint ("TAC"), asserting causes of action against Morales, McKinley Children's Center f/k/a McKinley Home for Boys ("McKinley"), Claremont Unified School District and Does 1-100 for: (1)

Battery, (2) Assault, (3) Negligent Hiring, Retention and Supervision, (4) Negligent Failure to Warn, Train or Educate, (5) Negligent Supervision of a Minor, (6) Breach of Mandatory Duty: Failure to Report Suspected Child Abuse, and (7) Negligence.

A Case

Management Conference is set for September 10, 2026.

Legal

Standard

Interrogatories

“[T]he

propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An

answer to a particular interrogatory is evasive or incomplete.

(2) An

exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An

objection to an interrogatory is without merit or too general.”

(Code

Civ. Proc., § 2030.300, subd. (a).)

The motion must include a meet and confer

declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code

Civ. Proc., §§ 2016.040; 2030.300, subd. (b)(1).) “In lieu of a separate

statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2030.300, subd. (b)(2).)

Notice

of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party

has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d

210, 220-221.)

“The court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Request for Production

“[T]he demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

- (1) A statement of compliance with the demand is incomplete.
 - (2) A representation of inability to comply is inadequate, incomplete, or evasive.
 - (3) An objection in the response is without merit or too general.”
- (Code Civ. Proc., § 2031.310, subd. (a).)

The motion must include a meet and confer declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).)

A motion to compel further responses to a demand for inspection or production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) If the moving party has shown good cause for the production of documents, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

Notice

of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2031.310, subd. (c).)

“[T]he

court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Discussion

Plaintiff moves the Court, pursuant to Code of Civil Procedure section 2030.300 and 203.1310, for an order compelling Morales to serve further verified responses to Plaintiff’s Form Interrogatories (i.e., Nos. 2.3-2.7, 2.11-2.13, 4.1, 4.2, 12.1-12.4, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, and 15.1), Special Interrogatories (i.e., Nos. 1-26), and Requests for Production of Documents (i.e., 1-18).

Filing Fees

At

the outset, the Court notes that Plaintiff’s motion improperly combines three motions to compel further responses to three different discovery vehicles into one motion. Plaintiff has only paid one filing fee and reserved a hearing for one motion. This is improper. Plaintiff is ordered to pay an additional \$120.00 in filing fees at or before the time of the hearing (i.e., \$60.00 filing fee/motion, multiplied by 3, minus 1 filing fee already paid). Counsel for Plaintiff is admonished to adhere to court filing and reservation guidelines in any future filings and to file (and pay for) separate motions for each discovery vehicle at issue in the future. Failure to do so may result in the motions being placed off calendar, in the Court’s discretion.

Merits

Plaintiff’s counsel Hugh Waters (“Waters”) represents, and/or the accompanying exhibits reflect as follows:

On or about March 10, 2026, Plaintiff served Morales with the subject discovery. (Waters Decl., ¶ 3, Exhs. A-C.) On April 24, 2026, Morales served responses. (Id., ¶ 3, Exhs. D-F.) Morales' responses consist almost entirely of boilerplate objections and blanket assertions of the Fifth Amendment privilege, with virtually no substantive information provided. Defendant has asserted the Fifth Amendment in response to basic questions including her employment dates, training received, and whether her family members observed Plaintiff at a hospital. (Waters Decl., ¶ 7.) On May 5, 2026, the parties met and conferred via phone call and Defense Counsel represented that they did not intend to amend their response. (Id., ¶ 9.)

Defendant

argues that Plaintiff's motion incorrectly assumes her 2013 conviction eliminated any possibility of further criminal prosecution. She contends that Plaintiff now alleges separate sexual assaults involving force, duress, threats, and intoxication, conduct potentially constituting rape and conduct that is distinct from the unlawful intercourse underlying her prior conviction. Defendant states that the statute of limitations remains open and that neither double jeopardy nor Penal Code Section 654 necessarily bar prosecution for separate criminal acts. Because her discovery responses could incriminate her or supply links in the evidentiary chain supporting new charges, Defendant asserts that she properly invoked the Fifth Amendment and that the motion should be denied.

Plaintiff,

in reply, argues that Defendant's opposition focuses exclusively on the Fifth Amendment and fails to defend other objections asserted. Plaintiff contends that Defendant cannot refuse all discoveries categorically. Plaintiff further asserts that many requests seek public, previously disclosed, or otherwise nonincriminating information and offers to narrow the definition of "incident".

Here,

the Court determines that Defendant properly invoked her Fifth Amendment privilege, but further concludes that the privilege does not categorically apply to every discovery request.

The

Fifth Amendment to the United States Constitution provides that "[n]o person .

. . shall be compelled in any criminal case to be a witness against himself.”

(U.S. Const., 5th Amend.; see also Cal. Const., art. 1, §

15.) “Although both the United States and California Constitutions speak

of the right not to be compelled to testify against oneself in a criminal

trial, such right has been greatly expanded by judicial decision. In

Kastigar v. United States (1972) 406 U.S. 441, 92 S.Ct. 1653, 32

L.Ed.2d 212 the United States Supreme Court declared that the privilege against

self-incrimination ‘can be asserted in any proceeding, civil or criminal,

administrative or judicial, investigatory or adjudicatory.’” (*Warford v.*

Medeiros (1984) 160 Cal.App.3d 1035, 1042.) The privilege is also

codified in Evidence Code § 940.

As the Fourth

District Court of Appeal observed in *Blackburn v. Superior Court* (1993)

21 Cal.App.4th 414, 427–28:

“In

deciding whether a question may incriminate a witness, the courts have more

recently been guided by the principle that protection must be confined to

instances where the witness has reasonable cause to apprehend danger from a

specific answer to a specific question. The witness is not exonerated from

answering merely because he declares that in so doing he would incriminate

himself—his say-so does not of itself establish the hazard of

incrimination. It is for the court to say whether his silence is justified. To

sustain the privilege, it need only be evident from the implications of the

question, in the setting in which it is asked, that a responsive answer to the

question or an explanation of why it cannot be answered might be dangerous

because injurious disclosure could result. The trial judge in appraising the

claim ‘must be governed as much by his personal perception of the

peculiarities of the case as by the facts actually in evidence.’”

“Whenever

the proffered evidence is claimed to be privileged under Section 940, the

person claiming the privilege has the burden of showing that the proffered

evidence might tend to incriminate him; and the proffered evidence is

inadmissible unless it clearly appears to the court that the proffered

evidence cannot possibly have a tendency to incriminate the person claiming the

privilege.” (Evid. Code § 404.) “The privilege afforded not only extends to

answers that would in themselves support a conviction under a federal criminal

statute but likewise embraces those which would furnish a link in the

chain of evidence needed to prosecute the claimant for a federal crime. But this protection must be confined to instances where the witness has reasonable cause to apprehend danger from a direct answer." (Warford, *supra*, 160 Cal.App.3d at p. 1043.)

Here,

Defendant has met her burden because she did more than merely assert that the discovery might incriminate her. Defendant identified the specific danger: although she pleaded guilty in 2013 to unlawful intercourse with a minor, Plaintiff now alleges separate acts involving force, duress, threats, intoxication, and repeated sexual assaults that could support charges distinct from the offense underlying her conviction; Plaintiff also concedes, for purposes of this motion, that further prosecution remains theoretically possible. In that setting, requests seeking Defendant's account of the alleged sexual conduct, her communications, the identities of witnesses, and related documents could elicit admissions establishing elements of another offense or furnish links in the evidentiary chain. Because Blackburn permits the Court to evaluate the danger from the implications of each request and the circumstances in which Plaintiff propounded it, the absence of Defendant's personal declaration does not defeat the privilege where the risk appears from the face of the pleadings and requests. The Court therefore finds that Defendant established a reasonable basis to invoke the privilege as to discovery directed at the alleged criminal conduct, subject to a separate determination as to each request.

Having

reviewed the requests at issue, the Court grants Plaintiff's motion in part and orders Defendant to server further, code-Compliant responses within 20 days. Defendant must respond to the following requests: Form Interrogatories 2.3-2.7, 2.11-2.12, 4.1-4.2, 12.6-12.7, 13.1-13.2; Special Interrogatories 1-2, 16, 26; Request for Production Documents 10 (as limited to public criminal records). The motion is otherwise denied.